

of the Court of Chancery (*c*), or by a *summons* upon a *written statement* to any such judge at chambers for the opinion or direction of such judge respecting the management or administration of the trust property.

19. **Amendment Act.** — By the Amendment Act, 23 & 24 Vict. c. 38, s. 9, the petition or statement is required to be *signed by counsel*, and the judge may require the attendance of counsel either in chambers or in court (*d*).

20. **Affidavits not allowed.** — In proceedings under this enactment there is no investigation of the facts, but the correctness of the petition or statement is assumed, and if there be any *suggestio falsi* or *suppressio veri* the order of the Court *pro tanto* is no indemnity to the trustee. No affidavits, therefore, ought to be filed, and the costs of them would be disallowed (*e*).

21. **Jurisdiction.** — The Court has jurisdiction in England, though one of the trustees be resident in Ireland (*f*).

22. **Parties to be served.** — What parties are to be served is in the discretion of the *judge, and V. C. [*619] Wood was of opinion that the proper course was not to serve the petition on any one in the first instance, but to apply at chambers for a direction as to the persons to be served (*a*), and V. C. Malins thought the question of service ought to be dealt with at the hearing of the petition (*b*). But V. C. Kindersley said he would never allow a petition under the Act to be brought on for the purpose of ascertaining who were to be served; and that the petitioners must serve such persons as they thought proper, and state in the note at the end whom they had served, and that the V. C.

[(*c*) These applications should now be made to the Chancery Division of the High Court of Justice; see 36 & 37 Vict. c. 66, s. 34.]

(*d*) See observations of V. C. Stuart in *Re Dennis*, 5 Jur. N. S. 1388, which may have led to this additional enactment. For the practice under the Act, see [Rules of the Supreme Court, 1883, Order 52, R. 19–22, Order 65, R. 26. Notwithstanding the Judicature Act, 1873, and Order 19, R. 4, of the Rules of the Supreme

Court, 1883, signature of counsel is still necessary, *Re Boulton's Trusts*, 51 L. J. N. S. Ch. 493.]

(*e*) *Re Muggeridge's Trust*, Johns. 625; *Re Mockett's Will*, Ib. 628; *Re Barrington's Settlement*, 1 J. & H. 142.

(*f*) *Re French's Trusts*, 15 L. R. Eq. 68.

(*a*) *Re Muggeridge's Trust*, Johns. 625.

(*b*) *Re Cook's Trust*, W. N. 1873. p. 49.